

Vikram Agrawal v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 May 2017 · Writ-C No. 21562 of 2017 · **Writ disposed; fresh Annexure 4.2 application to be considered**

HEADNOTE

A new connection had been refused for want of proved title and because a civil dispute was pending. The High Court disposed of the writ by permitting a fresh application with a duly executed Annexure 4.2 indemnity bond under Clause 4.4 of the U.P. Electricity Supply Code, 2005. The licensee was to scrutinise any such application made within the time allowed and pass appropriate orders; the 6 April 2017 refusal was rendered ineffective. Connection was not directed on the merits.

FACTUAL SUMMARY

The petitioner sought a new permanent connection from Paschimanchal Vidyut Vitran Nigam Ltd. The licensee refused, holding that he had not proved title to the premises and that a civil dispute with his father was pending. He argued that the dispute could not block a connection if he met the U.P. Electricity Supply Code, 2005. The licensee invoked Clause 4.4 and Annexure 4.2, saying an indemnity bond would allow the application to be considered afresh. He undertook to apply with that bond.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — indemnity bond where title is disputed

HOLDING

An applicant refused a new connection for want of proved title, and because a civil dispute is pending, may apply afresh with a duly executed indemnity bond in the form of Annexure 4.2 to Clause 4.4 of the U.P. Electricity Supply Code, 2005; the licensee shall then scrutinise the application and pass appropriate orders, and the earlier refusal stands ineffective. No connection is directed on the merits. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A new connection had been refused for want of proved title and because a civil dispute was pending. The High Court disposed of the writ by permitting a fresh application with a duly executed Annexure 4.2 indemnity bond under Clause 4.4 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW CONNECTION ON THE MERITS, INCLUDING TITLE AND THE PENDING CIVIL DISPUTE WITH HIS FATHER

The Court directed only scrutiny and appropriate orders on a fresh Annexure 4.2 application. ¶ 1